

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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KENNETH GARNES,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOEMAR WILSON
and P.O. JOHN DOE,

Defendants.

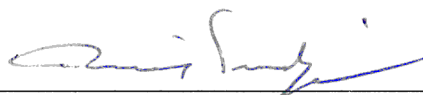
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Queens County as the venue for trial based on the location of the incident.

Dated: Forest Hills, NY
January 29 , 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
KENNETH GARNES
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. JOEMAR WILSON
100 Church Street
New York, NY 10007

P.O. JOHN DOE
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
KENNETH GARNES,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. JOEMAR WILSON
and P.O. JOHN DOES # 1-3,

Defendants.
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Plaintiff, KENNETH GARNES, by his attorneys, the Law Office of Michael Dreishpoon,
P.C., complaining of the Defendants, alleges, upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff, KENNETH GARNES, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. JOEMAR WILSON, was an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendant, P.O. JOHN DOE, was an employee of the NYPD.
5. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and supervised P.O. JOEMAR WILSON and P.O. JOHN DOE.

7. P.O. JOEMAR WILSON and P.O. JOHN DOE are graduates of the NYPD's Police Academy.
8. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. JOEMAR WILSON and P.O. JOHN DOE, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as Plaintiff.
9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. JOEMAR WILSON and P.O. JOHN DOE in the protection of the rights of Plaintiff under the Constitution of the United States of America.
10. Upon information and belief, at all times herein mentioned, P.O. JOEMAR WILSON and P.O. JOHN DOE were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
11. At all times hereinafter mentioned, Defendants were acting under the color of state law and their acts constituted "state action."
12. Plaintiff served a Notice of Claim on THE CITY OF NEW YORK on August 9, 2023 and testified at a General Municipal Law § 50-h hearing on December 22, 2023. More than thirty days have elapsed since the claims upon which this action is based were presented to THE CITY OF NEW YORK, which has neglected and/or refused to make payment or adjustment thereof.

13. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
14. Plaintiff's damages on each of the following causes of action exceed the jurisdictional limits of New York States's lower courts.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER
42 U.S.C. § 1983 & STATE LAW**

15. On June 9, 2023, at approximately 4:45 P.M., Plaintiff was standing on the corner of 40th Ave. and 23rd St. in Long Island City, NY.
16. After a short while, several unmarked NYPD vehicles drove up to the corner and stopped.
17. Several plain-clothed police officers exited the vehicles.
18. One of the officers, presumably Defendant, P.O. JOEMAR WILSON, "patted down" Plaintiff.
19. Defendant, P.O. JOEMAR WILSON, did not find any illegal substances, pre-recorded buy money, drug paraphernalia or a large sum of cash on Plaintiff's person.
20. This same officer then hand-cuffed Plaintiff.
21. This same officer then placed Plaintiff under arrest (Arrest #Q23622110).
22. This same officer put Plaintiff into a "paddy wagon."
23. After being driven around the neighborhood for the next 20 to 30 minutes, Plaintiff was taken to the 114th Precinct.
24. Plaintiff was processed, fingerprinted and placed in a jail cell.
25. At some point thereafter, Defendant, P.O. JOEMAR WILSON, signed a Criminal Complaint falsely accusing Plaintiff of Criminal Sale of a Controlled Substance in the

Third Degree (PL 220.39(1)) and Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03).

26. The Complaint states that an undercover officer, referred to herein as Defendant, JOHN DOE, saw Plaintiff hand cocaine to a woman.
27. The Complaint also says that JOHN DOE handed the woman \$5.00 and she handed him cocaine.
28. Plaintiff remained in police custody for nearly two days.
29. Upon information and belief, Plaintiff was arraigned around 10:00 A.M. on June 11, 2023 (Dkt. # CR-016747-23QN) and charged with the aforementioned offenses. A copy of the Complaint is attached hereto as Exhibit 1.
30. Plaintiff was released on his own recognizance and the case was adjourned to August 1, 2023 in Courtroom AP-6.
31. On August 1, 2023, the case was adjourned to October 12, 2023.
32. On October 12, 2023, the case was adjourned to November 30, 2023.
33. On November 30, 2023, the case was adjourned to January 23, 2024.
34. On December 20, 2023, the case was dismissed and sealed. A copy of the Certificate of Disposition is attached hereto as Exhibit 2.
35. Plaintiff was wholly innocent of all charges, and THE CITY OF NEW YORK and its police department lacked probable cause or reasonable suspicion to justify arresting and prosecuting Plaintiff, but proceeded to arrest and prosecute him nonetheless.
36. Defendants' above mentioned actions were done without probable cause, just cause, reasonable grounds, justification or provocation.
37. By reason of Defendants' foregoing acts, Plaintiff was caused to suffer loss of liberty,

loss of earnings, emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

38. On June 9, 2023, at the aforementioned location, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having committed any crimes.
39. Defendants, and/or their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, detained, and with full force of arms, laid hold of and compelled Plaintiff to be detained at the 114th Precinct and criminal courthouse.
40. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.
41. By reason of the foregoing false arrest, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER
42 U.S.C. § 1983 & STATE LAW**

42. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
43. Plaintiff was wholly innocent of the charges that Defendants alleged he committed, yet was forced to submit to court proceedings.
44. More specifically, Defendants, their agents, servants and/or employees falsely,

maliciously, and without probable cause or provocation alleged that Plaintiff committed the crimes of Criminal Sale of a Controlled Substance in the Third Degree and Criminal Possession of a Controlled Substance in the Seventh Degree.

45. Defendants commenced and continued the aforementioned criminal proceeding against Plaintiff, the criminal proceeding terminated in Plaintiff's favor, there was an absence of probable cause for the commencement or continuation of the criminal proceeding, and Defendants acted with actual malice in doing so.
46. By reason of the foregoing malicious prosecution, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

THIRD CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION
UNDER 42 U.S.C. § 1983 & STATE LAW

47. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
48. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individually named defendants, as well as the other officers involved.
49. As a result of the above-mentioned negligence, NYPD officers, including P.O. JOEMAR WILSON and P.O. JOHN DOE, falsely imprisoned and maliciously prosecuted Plaintiff.
50. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.
51. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise,

and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, false imprisonment and malicious prosecution.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
January 29 , 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
KENNETH GARNES
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

I, KENNETH GARNES, affirm this 29th day of January, 2024, under penalties of perjury under the law of New York, which may include fine or imprisonment, that the following is true, and I understand that this document may be filed in an action or proceeding in a court of law.

(1) I am the plaintiff in the within action.

(2) I have read the foregoing Verified Complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


KENNETH GARNES